

and release of claims under the Act." (*Id.*) The Court also stated it "did not disagree" with other decisions that have stated a vehicle buyer is not prevented from settling for less than the full purchase price of the vehicle or that Civil Code § 1790.1 means that no settlement of Song-Beverly Act claims is enforceable. (*Id.*)

The Court does not have before it the class settlement agreement. The Court cannot infer the terms of the settlement or how it applies to Plaintiff here, and what remedies, if any, Plaintiff is required to waive under the Song-Beverly Act pursuant to the class settlement assuming she did not opt out of the settlement after service of a notice of class action settlement that meets due process standards. The Preliminary Order refers to the establishment of a qualified settlement fund, but without the terms of the settlement and evidence of its effect on Plaintiff's claims, the Court cannot determine whether or not the class settlement effects a void or unenforceable waiver of Plaintiff's unwaivable rights under the Song-Beverly Act. The Court therefore does not reach the merits of Plaintiff's arguments regarding *Rheinhart* and the underlying class settlement.

4. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: MACHADO, ELVECIO
TENTATIVE RULING:

Before the Court is Plaintiff Elvecio Machado and Plaintiff Tatiana Arambulo (collectively, "Plaintiffs")'s motion for leave to file First Amended Complaint. The motion is opposed by Defendant Gino Caruso and Defendant Laudelino Caruso (collectively, "Defendants"). Defendants are in pro per.

Plaintiffs seek to substitute Cars To Go, Inc. for Doe Defendant No. 1 as well as add two new causes of action for Intentional Interference with Contractual Relations and Common Law Trademark Infringement against Cars To Go, Inc and existing Defendants Laudelino Caruso and Gino Caruso.

For the following reasons, the motion is **granted**. The First Amended Complaint is deemed filed as of April 10, 2026. Plaintiff is directed to file a new copy of the

First Amended Complaint by April 17, 2025.

Analysis

A trial court has discretion to allow amendment of any pleading at any stage of the proceedings. (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081 [policy of “great liberality” in permitting amendments to pleadings at any stage of the proceedings].) Regardless of the stage of the proceeding, trial courts are to liberally permit such amendments, provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489-490.)

Compliance with CRC 3.1324(a) and (b). A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. (CRC 3.1324(a).)

A motion for leave to amend a complaint must also be accompanied by a declaration that explains: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)

The Court notes that Plaintiffs’ motion fails to technically comply with the requirements of California Rule of Court 3.1324(a)(3) as it does not “state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located,” though the declaration of Sarah Okdie does appear to satisfy the requirements of subsection (b). That said, Defendants did not object on this ground and the Court is not inclined to deny the motion on this basis.

Delay. First, Defendants oppose the motion on the grounds of unreasonable delay. They argue that “[t]he facts underlying the amendment were known well before the filing of Plaintiffs’ original Complaint.” (Opp. at 3:17-18.) However, the Declaration of Sarah Okdie states that her firm “engaged in investigations into a separate entity used to syphon proceeds from Cars To Go Towing, Inc.” and that “[o]n or about October 13, 2025, these investigations uncovered that

Jonathan Caruso, is the chief executive officer, chief financial officer and secretary of a company called Cars To Go, Inc.” (Okdie Decl. at ¶¶ 12, 14.) Ms. Okdie further testifies that on or about December 10, 2025 her investigations “uncovered a video of the regular meeting of the Planning Commission conducted by the City of Concord on February 1, 2022, in which Laudelina Caruso and Jonathan Caruso requested a Use Permit to allow Cars To Go, Inc. to operate a tow dispatch facility at the Cloverdale Location.” (*Id.* at ¶ 18.) Plaintiffs filed the instant motion shortly thereafter on December 29, 2025. The Court cannot conclude that there was unreasonable delay.

Prejudice. Next, Defendants argue that allowing the amendment would substantially prejudice them as it would require additional discovery, increase litigation costs, delay resolution of the case, and require alteration of defense strategy.

Prejudice in this context is where amendment would result in, among other things, necessitating a continuance to allow the defendant to depose new witnesses, a delay of trial, along with a loss of critical evidence, added costs of preparation, or increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Here, Defendants have not identified cognizable prejudice—their conclusory recitation of the elements of substantial prejudice is insufficient. (See also *Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 945 [it is irrelevant that the new legal theories are introduced as long as the proposed amendments relate to the same general set of facts].) The Court declines to deny the motion on this ground.

Futility. Defendants also oppose the motion for leave to amend on the grounds that Plaintiffs proposed claims fail for lack of causation. This argument is not supported by any cause law or specific reference to the proposed additional causes of action. The Court declines to deny the motion on this ground.

Bad Faith. Finally, Defendants argue that “[t]he timing of Plaintiffs’ motion—on eve of trial—suggests a tactical attempt to gain leverage in a case where they clearly have none, rather than a good-faith effort to plead meritorious claims.” (Opp. at 4:10-12.) The Court notes that trial in this case is over six months away. The Court declines to deny the motion on this ground.

The motion is **granted**.

5. 9:00 AM CASE NUMBER: C24-01208

CASE NAME: DOMONIQUE MEJIA VS. DA'TONJA RAMIREZ

HEARING ON DEMURRER TO: TO 1ST AMENDED COMPLAINT | CONTD FROM 3/27/26

FILED BY: MAINSTREAM ESCROW, INC.

TENTATIVE RULING:

Before the Court is a demurrer by defendant Mainstream Escrow, Inc. to the first amended complaint. For the reasons set forth, the Court rules as follows: (a) general demurrers to 1st, 2nd, 3rd, 6th, 7th, and 8th causes of action – **sustained**, without prejudice to Plaintiff filing a motion for leave to amend to add these or other causes of action; (b) general and special demurrers to 4th and 5th causes of action – **overruled**; (c) special demurrers to 10th, 11th, 12th, and 13th causes of action – **sustained, with leave to amend**, as set forth below; and (d) demurrer to prayer for punitive damages - **overruled**.

Background

On May 6, 2024, plaintiff Dominique Mejia filed a complaint against Da'Tonja Ramirez, Mainstream Escrow, Inc. and other defendants arising out of a grant deed which was purportedly executed by her granting sole ownership to a property in Hercules in which she and defendant Ramirez held title as joint tenants. Plaintiff alleges Ramirez and other defendants, now including Mainstream, conspired to remove Mejia's interest in the property as part of a refinance transaction by obtaining and recording a fraudulent grant deed transferring title to Ramirez alone, a grant deed Mejia denies she executed.

Mainstream filed a motion for judgment on the pleadings directed to the fourth and fifth causes of action of the original complaint, which the Court granted, with leave to amend. Plaintiff filed her first amended complaint ("FAC"). Mainstream demurs to all causes of action of the FAC and to the prayer for punitive damages.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v.*